

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MOLLY CHEEVERS,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, POLICE OFFICER
MURRAY, TAX ID 955243, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 25, 2020

Yours, etc.

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER MURRAY, TAX ID 955243, NYPD SRG2, 1278 Sedgwick Avenue,
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

MOLLY CHEEVERS,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MURRAY, TAX ID 955243, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff MOLLY CHEEVERS, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 29, 2020, at approximately 7:00 P.M., Plaintiff MOLLY CHEEVERS, while lawfully in the vicinity of the Barclays Center, in Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to an assault, battery, and use of excessive force by the defendant officers when the defendant police officers grabbed Plaintiff, threw Plaintiff to the ground, tackled Plaintiff, and dragged Plaintiff by the arms, causing physical injury necessitating medical treatment. Plaintiff was then unlawfully imprisoned at One Police Plaza for approximately six hours until plaintiff was released with a Desk Appearance Ticket. The Kings County District Attorney's office declined to prosecute Plaintiff because Plaintiff committed no crimes. Plaintiff was deprived of Plaintiff's constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff MOLLY CHEEVERS is a resident of the state of New York.

3. POLICE OFFICER MURRAY, TAX ID 955243, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MURRAY, TAX ID 955243, was at all times relevant herein, assigned to the NYPD SRG2 Unit.

5. POLICE OFFICER MURRAY, TAX ID 955243, is being sued in his individual and official capacity.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of Plaintiff's causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on May 26, 2020.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On May 29, 2020, at approximately 7:00 p.m., Plaintiff was lawfully present in the vicinity of The Barclays Center, in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

16. Plaintiff was lawfully and peacefully protesting as part of the Black Lives Matter movement outside of the Barclays Center.

17. The Defendant officers were telling Protestors to back up.

18. Plaintiff complied with all of the Defendant Officers orders.

19. The Defendant Officers were physically pushing protestors from the sidewalk to the street outside of Barclays Center.

20. Without justification or any action that would warrant restraint, Plaintiff was tackled and thrown to the ground by Defendant Officers, causing physical injury.

21. Plaintiff was pushed face down into the concrete and immediately handcuffed with extremely tight zip ties.

22. Plaintiff was then picked up by a single arm, and dragged to an MTA Bus, which the Defendant Officers commandeered.

23. The Defendants actions in dragging Plaintiff by Plaintiff's arm, coupled with the extremely tight handcuffs, caused significant physical injuries to Plaintiff hands, wrists and arm.

24. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse plaintiff of committing a crime or violating the law in any way.

25. Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

26. At no point did Plaintiff resist arrest.

27. Defendants transported Plaintiff to One Police Plaza police station against Plaintiff's will, where Plaintiff was unlawfully photographed, fingerprinted and detained in a holding cell.

28. Plaintiff continually asked what Plaintiff was being arrested for but the Defendant Officers refused explain.

29. Plaintiff is transgendered, and the Defendants repeatedly made derogatory comments about Plaintiff's gender causing severe emotional distress.

30. Plaintiff was unlawfully detained for approximately 6 hours, until Plaintiff was released with a Desk Appearance Ticket for "obstructing vehicular traffic."

31. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

32. The Kings County District Attorneys Office declined to prosecute Plaintiff, because Plaintiff committed no crimes.

33. Plaintiff never went to Court or saw a Judge.

34. When Plaintiff was released from the precinct, Plaintiff sought medical treatment for Plaintiff's hands and wrists.

35. Plaintiff also sought therapy from a psychologist at NYU due to the Defendants actions.

36. Plaintiff is an NYU Medical Student, and the injuries to Plaintiff's hands, wrists and arms make it much harder for Plaintiff to complete Plaintiff's laboratory work.

37. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying plaintiff the right to due process and a fair trial

38. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

48. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

54. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. Defendants lacked probable cause to search Plaintiff.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

61. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

63. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

64. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

65. In withholding/creating false evidence against Plaintiff MOLLY CHEEVERS, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

66. As a result of the foregoing, Plaintiff MOLLY CHEEVERS, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of Plaintiff's constitutional rights.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligence

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. Defendants owed a duty of care to Plaintiff.

72. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against Plaintiff was unintentional, then the defendants breached that duty of care by throwing Plaintiff to the ground and injuring Plaintiff's wrists and hands.

73. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York.

74. All of the foregoing occurred without any fault or provocation by Plaintiff.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

78. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The use of excessive force by defendants by, amongst other things, by dragging Plaintiff by the arm and excessively tightly cuffing Plaintiff constituted objectively unreasonable physical seizures of Plaintiff in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Assault

81. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

83. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

87. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner threw Plaintiff to the ground and dragged Plaintiff by the arms with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery, by throwing Plaintiff to the ground and excessively cuffing plaintiff.

89. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

93. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

95. Defendants commenced and continued a criminal proceeding against Plaintiff.

96. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

97. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

98. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

99. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York and the United States Constitution.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

102. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, MOLLY CHEEVERS. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

104. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

105. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

109. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

111. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene

112. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 111 with the same force and effect as if more fully set forth at length herein.

113. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

114. Defendants failed to intervene to prevent the unlawful conduct described herein.

115. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, Plaintiff was put in fear of Plaintiff's safety, humiliated, and subject to other physical constraints.

116. As a direct and proximate result of such acts, defendants deprived Plaintiff of Plaintiff's rights under the laws of the State of New York.

117. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

118. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

119. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

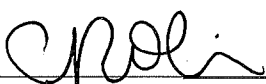
JURY DEMAND

120. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff MOLLY CHEEVERS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 25, 2020

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

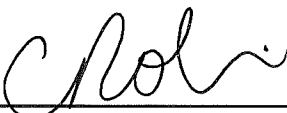
POLICE OFFICER MURRAY, TAX ID 955243, NYPD SRG2, 1278 Sedgwick Avenue,
Bronx, NY 10452

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 25, 2020



CAITLIN ROBIN

